

Bihar Biological Diversity Rules, 2017

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State of Bihar - Act

Bihar Biological Diversity Rules, 2017

BIHAR

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Bihar Biological Diversity Rules, 2017

Rule BIHAR-BIOLOGICAL-DIVERSITY-RULES-2017 of 2017

Published on 27 March 2017

Commenced on 27 March 2017

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Bihar Biological Diversity Rules, 2017

Published vide Notification No. 2/Van prani-14/16-188(E), dated 27.3.2017

No. 2/Van prani-14/16-188(E) - In exercise of the powers conferred by Section 63 of the Biological Diversity Act, 2002, (Act 18 of 2003) the Government of Bihar hereby makes the following rules, :-

1.

Short title extent and commencement.

(1)

These rules may be called Bihar Biological Diversity Rules, 2017.

(2)

It Shall extend to the whole of the State of Bihar.

(3)

It shall come into force on such date as may be notified by the Government

2.

Definitions.

- In these rules, unless otherwise requires in the context -

(1)

"Act" means the Biological Diversity Act, 2002 (18 of 2003);

(2)

"Authority" means the National Biodiversity Authority established under subsection (1) of section 8 of the Act.

(3)

"Board" means the Bihar State Biodiversity Board established under section 22 of the Act.

(4)

"Committee" means a Biodiversity Management Committee established by a local body under section 41 of the Act;

(5)

"Chairperson" means the chairperson of "Bihar State Biodiversity Board";

(6)

"Fee" means any fee stipulated in the Schedule;

(7)

"Form" means form annexed to these rules;

(8)

"Government" means the Government of Bihar;

(9)

"Member" means a member of the Bihar State Biodiversity Board"; and includes Chairperson;

(10)

Secretary means the Secretary of the Board;

(11)

"Rule" means a rule of these rule;

Words and expressions used but not defined in these Rules and defined in the Act shall have the same meaning as assigned to them in the Act.

3.

Constitution of State Biodiversity Board.

- Board shall consist of the following members:-

(a)

Chairperson

(b)

Not more than five Ex-officio members to be appointed by State Government.

(c)

Not more than five members to be appointed from amongst experts in biological diversity.

4.

Procedure of selection and appointment of the Chairperson.

(1)

The Chairperson of the Board shall be appointed by the State Government.

(2)

Appointment of Chairperson under sub-rule (1) of this rule shall be made by the State Government in accordance with section 22 (4) (a) of the Act either on deputation basis or by selection. Provided that if the appointment is made on deputation, such candidate shall not be below the rank of the Principal Secretary, Government of Bihar.

(3)

Appointment of any person to the post of the Chairman by selection from outside the Govt. service will be made by the selection committee headed by the Chief Secretary, members of which will be the Principal Secretary/Secretary, Environment & Forests and Principal Chief Conservator of Forest (HoFF).

5.

Term of office of the Chairperson.

(1)

The Chairperson of the Board shall hold office for a term of three years and shall be eligible for re-appointment, provided that no person shall hold office of the Chairperson after the age of sixty-five years or expiry of his/her term of office which ever is earlier.

(2)

The Chairperson may resign his office by giving at least one-month prior notice in writing to the State Government.

6.

Pay and allowances of chairperson.

- The Chairperson shall be entitled to all such salary, allowances, leave, pension, provident fund, house allowance and other perquisites as may be decided by State Government from time to time.

7.

Appointment, term of office and allowances of non-government members.

(1)

The Government shall nominate not more than five experts non-government members having Expert knowledge and experience in respective subjects in accordance with section 22 (4) (a) of the Act.

(2)

Every non-government member of the Board shall hold office for a term not exceeding three years at a time from the date of his nomination.

(3)

Every non-government member attending the meeting of the Board shall be entitled to sitting allowance, travelling expenses, daily allowance and such other allowances as may be fixed by the Government.

8.

Filling up of vacancies of non-government members.

(1)

A non-government member of the Board may resign his post at any time by giving in writing the resignation (under his hand) addressed to the Government and the seat of that member in the Board shall become vacant.

(2)

A casual vacancy of a non-government member in the Board shall be filled up by a fresh nomination and the person nominated to fill the vacancy shall hold office only for the remaining period of the term of the member in place of whom he is nominated.

9.

Removal of the members of the Board.

- A member of the Board may be removed by the government from his office on any ground specified in section 11 of the Act after issuing show cause notice and giving such member a reasonable opportunity of being heard.

10.

Appointment of the Ex-officio members of the Board.

- Not more than five official from the following departments/organizations shall be appointed as ex-officio members by the State Government for so long as they hold office:

(1)

Agriculture Department, Bihar (Principal Secretary/Secretary) ;

(2)

Department of Environment and Forests, Bihar (Principal Secretary/ Secretary) ;

(3)

Animal & Fisheries Resources Department, Bihar (Principal Secretary/ Secretary);

(4)

Water Resources Department, Bihar (Principal Secretary/ Secretary);

(5)

PCCF (HoFF), Bihar:

Provided that ex-officio members may nominate such subordinate officers to represent them in the meeting of the Board who shall not be below the rank of Joint Secretary.

11.

Secretary.

- The Secretary of the Board Shall be an officer not below the rank of Conservator of Forests who may be appointed on deputation by the State Government.

12.

Head Quarter of the Board.

- The Head Quarter of the Board shall be in Patna.

13.

Functions and Responsibility of Secretary of the Board.

(1)

The Secretary shall be responsible for management of funds and implementation of various activities under the guidance of the Chairperson.

(2)

All orders or instructions to be issued by the Board shall be under the signature of Secretary or any officer authorized for this purpose by the Board.

(3)

The Secretary either himself or through any officer authorised for this purpose. may, after obtaining sanction of the Board disburse payments from the approved budget.

(4)

The Secretary shall have the powers to give technical sanctions of estimates included in the budget of the Board.

(5)

The Secretary shall be in charge of all the confidential papers of the Board and shall be responsible for their safe custody. He shall produce such papers whenever so directed by the Board/ Government.

(6)

The Secretary shall write and maintain confidential report of the officers and employees of the Board and shall get them countersigned by the Chairperson.

(7)

The Secretary shall exercise such other powers and perform such other functions, as may be delegated to him, from time to time, by the Board.

14.

Meetings of the Board.

(1)

The Board shall meet at least four times in a year normally after a period of three months at the head quarters of the Board or at such places as may be decided by the Chairperson.

(2)

The Chairperson shall, upon a written request from not less than five members of the Board or upon a direction of the State Government, call a special meeting of the Board.

(3)

The members shall be given at least fifteen days notice for holding an ordinary meeting and at least three days notice for holding a special meeting specifying the purpose, the time and the place at which such meeting is to be held.

(4)

Every meeting shall be presided over by the Chairperson and in his absence, by a presiding officer elected by the members present in the meeting.

(5)

The decision of the Board at a meeting shall, if necessary, be taken by a simple majority of the members present and voting and the Chairperson or in his absence, the member presiding shall have a second or casting vote.

(6)

Each Member shall have one vote.

(7)

The quorum at every meeting of the Board shall be present with the Presence of five members including the chairperson or the presiding member.

(8)

No member shall be eligible to bring forward any matter for the consideration in the meeting of which he has not given ten days' notice unless the Chairperson in his discretion permits him to do so.

(9)

Notice of the meeting may be given to the members by delivering the same by message or sending it by registered post or email to his last known place of residence or business or in such other manner as the Secretary of the Board may, in the circumstances of the case, think fit.

(10)

In addition, the Board may evolve such other procedure for the transaction of business as it may deem fit and proper.

15.

Appointment of expert Committee by the Board and their entitlements.

(1)

The Board may constitute any number of Committees, for such purposes as it may deem fit, consisting wholly of the members or wholly of other persons or partly of the members or partly of other persons.

(2)

The non-government Members of the Committee other than the members of the Board shall be paid such fees and allowances for attending the meetings as the Government may deem fit.

16.

General functions of the Board.

- Particularly and without prejudice to the generality of other provisions, the Board may perform the following functions: -

(1)

To Lay down the procedure and guidelines to govern the activities provided under section 23 of the Act;

(2)

to advise the State Government on any matter concerning genetically modified crops or any other genetically modified bio resource, conservation of biodiversity, sustainable use of its components and fair and equitable sharing of benefits arising out of the use of biological resource and knowledge;

(3)

to regulate by granting of approvals or otherwise requests for commercial utilization or bio-survey and bio-utilization of any biological resource including genetically modified one by Indian nationals;

(4)

to provide technical assistance and guidance to the departments of the State Government and the Biodiversity Management Committees (BMCs);

(5)

to facilitate updating and implementation of State Bio-diversity Conservation Strategy and Action Plan;

(6)

to initiate studies and to sponsor investigations and research;

(7)

to appoint consultants, for a specific period, not exceeding three years, for providing technical assistance to the Board in the effective discharge of its functions:

provided that if it is necessary and expedient to appoint any consultant for more than the period of three years, the Board shall obtain prior approval of the Government for such appointment;

(8)

to collect, compile and publish technical and statistical datas, directories, codes or guidelines relating to conservation of biodiversity, sustainable use of its components and proper and justified partnership of benefits arising out of the use of biological resources and knowledge;

(9)

to organise a wide programme through mass media a comprehensive programme regarding conservation of biodiversity, sustainable use of its components and proper and justified Participation of benefits arising out of the use of biological resource and knowledge;

(10)

to plan and organize training of personnel employed or likely to be employed in programmes for the conservation and biodiversity and sustainable use of its components;

(11)

to take steps to build up data base and to create information and documentation system for biological resources and associated traditional knowledge through biodiversity registers and electronic data bases, to ensure effective management, promotion and sustainable uses;

(12)

to give direction to the local bodies/ Biodiversity Management Committees in writing for effective implementation of the Act;

(13)

to report to the State Government about the functioning of the Board and implementations of the Provision of the Act and the Rules made there under;

(14)

to establish such process to ensure protection of rights and it includes intellectual property rights over biological resources and associate knowledge, systems of maintaining confidentiality of such information as appropriate, the protection of the information recorded in People's Biodiversity Registers also;

(15)

to recommend/ prescribe, modify collection of fee of biological resources from time to time;

(16)

to sanction grants-in-aid and grants to Biodiversity Management Committees for specific purposes;

(17)

to undertake physical inspection of any area in respect of the implementation of the provisions of the Act;

(18)

to prepare the annual budget of the Board incorporating its own receipts as also the devolution from the State and Central Government:

provided that the allocation by the Central Government shall be operated in accordance with the budget provisions as approved by the Central Government;

(19)

The Board shall have full powers to grant technical and administrative sanction to all the estimates. It may, however, delegate such administrative and technical sanctioning powers to the Member-Secretary of the Board as it may be deemed necessary.

(20)

to recommend for creation of posts to the State Government for effective discharge of the functions by the Board:

Provided that no such post whether permanent/temporary or of any nature, would be created without prior approval of the State Government;

(21)

to perform such other functions as it may be required to give effect to provisions of the Act or as it may be assigned or directed by the state government from time to time;

(22)

To acquire, hold and dispose off property, both movable and immovable and enter into contract for the same.

17.

Powers and duties of Chairperson.

(1)

The Chairperson shall ensure that the affairs of the Board are run efficiently and in accordance with the provisions of the Act and the rules made thereunder.

(2)

The Chairperson shall have administrative control over the officers and staff of the Board and he may issue necessary directions for the conduct and management of affairs of the Board.

(3)

The Chairperson shall convene and preside over all the meetings of the Board and shall ensure that all decisions taken by the Board are implemented in proper manner.

(4)

The Chairperson shall exercise such powers and perform such other functions as may be delegated to him, from time to

time, by the Board.

18.

Regulation of terms and conditions of service of officials/Staff of the Board.

(1)

The terms and conditions of service of officers /Staff of the Board shall be similar to service conditions and pay scale of the officers/ Staff of the State Government and, the appointments shall generally be made on deputation or on contract basis, unless otherwise determined by the state government.

(2)

The Board shall determine the procedure of appointment and promotion etc. of its officers/staff.

19.

Procedure for access to and/or for obtaining biological resources and associated traditional knowledge.

(1)

Any person intending to obtain any biological resources and associated knowledge for research or for commercial utilization, with the exception of those in proviso to section 7 of the Act, shall give prior intimation to the Board making an application in Form I.

(2)

Every application given under sub-rule (1) shall be accompanied by a fee of Rs. 10000/-(Ten thousand rupees only) in the form of cheque or demand draft payable in favour of the Board.

(3)

The Board shall, after consultation with the concerned local Biodiversity Management Committee and on collection of such additional information from the applicant and other sources, as it may deem necessary, dispose of the application, as far as possible, within a period of six months from the date of receipts.

(4)

While disposing the application under sub-rule (3) the Board may, by order, prohibit or restrict any activity deemed detrimental or contrary to the objectives of conservation and sustainable use of biodiversity or Justified of benefits arising out of such activity:

Provided that such adverse order shall be made after giving an opportunity of being heard to the applicant.

(5)

A written agreement duly signed by an authorized officer of the Board and the applicant shall govern the access to /collection of biological resources or traditional knowledge. The form of the agreement shall be decided by the Board.

(6)

The conditions for access to/collection may specifically provide measures for conservation and protection of biological resources to which the access to/collection is being granted.

(7)

Any information given in the form referred to in the sub-rule (1) for prior intimation shall be kept confidential and shall not be disclosed, either intentionally or unintentionally, to any person not concerned thereto.

20.

Revocation of access or approval.

(1)

The Board may either on the basis of any complaint or suo moto withdraw the access granted and revoke the written agreement under the following conditions:-

(a)

On the basis of reasonable belief that the person accessing the said bioresource has violated any of the provisions of the Act or the condition on which the approval was granted;

(b)

When the person has failed to comply with the terms of the agreement;

(c)

On failure to comply with any of the conditions of access;

(d)

In case violation of public interest with respect to protection and conservation of biological diversity, and protection of the rights, livelihoods, and knowledge of local communities.

(2)

The revocation order shall be made only after making such inquiries as it may be required after giving the person so affected an opportunity of being heard.

(3)

The Board shall send a copy of such revocation order to the biodiversity Management Committees for prohibiting the access and also to assess the damage, if any, caused and take steps to recover the damage.

21.

Restriction of activities relating to access to biological resources.

- The Board if it deems necessary and appropriate, shall take steps to restrict or prohibit the request for access to biological resources including genetically modified resource for the following reasons:-

(1)

The request for access is for any endangered taxa, or taxa that is likely to become threatened due to such access;

(2)

The request for access is for any endemic and rare species;

(3)

The request for access may likely to result in adverse effect on the livelihoods, culture or indigenous knowledge of the local people;

(4)

The request to access may result in adverse environment impact which may be difficult to control and mitigate;

(5)

The request for access may cause genetic erosion or affecting the ecosystem function;

(6)

Use of resources for purposes contrary to national interest and other related international agreement entered into by the country.

22.

Operation of State Biodiversity Fund.

(1)

The State Bio-diversity Fund shall be operated by the Secretary or by such any other officer of the Board as may be authorized by the Board in this regard.

(2)

The State Bio-diversity Fund shall have two separate heads of accounts, one relating to the receipts (grants and loans) from the Central Government/National Bio-diversity Authority and State Government including receipts from such other sources as decided by the Board and the other concerning the fee, license, royalty and other receipts of the Board.

(3)

The State Government may pay the Board such sum of money as it deems necessary for implementation of provisions under the Act.

(4)

The Board shall frame guidelines to ensure that decisions regarding the management and use of the fund are transparent and accountable to the public.

23.

Annual Report and Annual Statement of Accounts.

(1)

The Board shall prepare its annual report for each financial year giving details of its activities and annual statement of accounts and submit the same to the State Government in Form-II.

(2)

The accounts of the Board shall be maintained and audited, in consultation with the Accountant General of the State. The Board shall submit a copy of the annual audited account together with auditor's report thereon to the State Government by October 15th of the following year.

(3)

The State Government shall lay down the annual report together with the auditor's report before the State Legislature, as soon as possible, after the receipt of same from the Board.

24.

Establishment and Management of Biodiversity Heritage Sites.

(1)

The Board shall, in consultation with the local bodies and other key stakeholders, take necessary steps to facilitate setting up of areas of significant bio-diversity values as Heritage Sites.

(2)

On the basis of recommendation of the Board and after consultation with the Central Government, the State Government shall issue notification to this effect.

25.

Constitution of Biodiversity Management Committees.

(1)

Every local Body shall constitute a Biodiversity Management Committee (BMC) consisting of persons residing within its area of jurisdiction for a tenure coterminus with the tenure of the local Body.

(2)

The Biodiversity Management Committee as constituted under sub-rule (1) shall consist of a Chairperson and not more than six persons nominated by the local body, of whom not less than two should be women and at least one should belong to the scheduled castes/scheduled tribes.

(3)

The chairperson of the Biodiversity Management Committee shall be elected from amongst the members of the committee in a meeting to be chaired by the chairperson of the local body. The chairperson of the local body shall have right to casting vote in case of equal votes.

(4)

Tenure of the Chairperson of the Biodiversity Management Committee (BMC) shall be co-terminus with the tenure of the committee.

(5)

The following officers of the local bodies shall be the Member- Secretaries of respective Biodiversity Management Committee:-

Gram Panchayat - Panchayat Secretary

Panchayath Samiti - Block Development Officer

Zila Parshad - Chief Executive Officer of Zila Parshad

Municipal Body - Chief Executive officer of the concerned Municipal Body

(6)

The Main function of Biodiversity Management Committee is to prepare People's Biodiversity Register in consultation with the local people. The Register shall contain comprehensive information on availability and knowledge of local biological resources, their medicinal or any other use or any other traditional knowledge associated with them.

(7)

The other functions of the BMC are to advise on any matter referred to it by the State Biodiversity Board for granting approval, to maintain data about the local Vaidyas and practitioners using the biological resources.

(8)

The Board shall provide guidance and technical supports to the Biodiversity Management Committees for preparing People's Biodiversity Registers and take steps to specify the form of the People's Biodiversity Registers, and the particulars in which the format for electronic database shall be included.

(9)

The People's Biodiversity Registers shall be maintained and verified by the Biodiversity Management Committees.

(10)

The Committee shall maintain the detail statement of access given to biological resources and traditional knowledge in a Register in which, details of the collection imposed fee and detail statement of the benefits derived and the method of their sharing will be included.

26.

Local Biodiversity Funds.

(1)

The local Biodiversity Fund constituted and applied as under section 42,43, 44 of the Act shall be operated under the seal and signature of the Chairperson of the respective Biodiversity Management Committee. The Fund shall have separate heads of accounts, one relating to receipts from the Authority, Government (Central and state) and the Board and the other concerning fees and other receipts of Biodiversity Management Committee.

(2)

Withdrawal of Amount from the local Biodiversity fund shall be made by joint signatures of the Chairman and the member-Secretary of the respective Biodiversity Management Committee.

(3)

The accounts of each Committee shall be maintained and audited, in consultation with the Accountant General of the State.

(4)

The Biodiversity Management Committee shall prepare its annual report of activities for each financial year in Form-III.

(5)

The Biodiversity Management Committee shall submit the Annual Report and copy of Audited Statement of Accounts together with a copy of Auditor's Report to the Board and District Magistrate by 15th of October in the following year.

27.

Appeal for settlement of disputes.

(1)

If a dispute arises between Biodiversity Management Committees, or between the Biodiversity Management Committees and local bodies on account of implementation of any order / direction or on any issue of policy decision the aggrieved party may prefer an appeal in Form-IV appended to these rules to the Board.

(2)

If a dispute arises between a BMC and the Board on account of implementation of any order/direction or on any issue of policy decision, the aggrieved party may prefer an appeal in Form-V appended to these rules to the Principal Secretary/Secretary, Environment and Forest Department, Government of Bihar.

(3)

The Memorandum of appeal shall state the facts of the case, the grounds relied upon by the appellant and the relief sought for, for preferring the appeal and shall be accompanied by an authenticated copy of the order, direction or policy decision, as the case may be, by which the appellant is aggrieved. The memorandum of appeal shall be duly signed by the appellant or authorized representative of the appellant.

(4)

The memorandum of appeal shall be submitted in quadruplicate, accompanied with the authenticated copy of the order, directions or policy decisions as the case may be, by which the appellant is aggrieved, either in person or through a registered post with acknowledgment due, within 30 days from the date of the orders, direction or policy decision:-

Provided that if the Appellate Authority is satisfied that there was proper and sufficient reason for the delay in preferring the appeal, the Appellate Authority, for reasons to be recorded in writing, may allow the appeal preferred after the expiry of the aforesaid period of thirty days but before the expiry of 45 days from the date of the orders, direction or policy decision, as the case may be.

(5)

The notice for hearing of the appeal shall be given in form (VI) or Form (VII) by a registered post with an acknowledgement due.

Schedule

Form 1

(See rule 17 (i))

Application form for prior intimation to access/ collection of Biological resources for commercial utilization and associated traditional knowledge.

(Every application shall be accompanied by a fee of Rs 10000 (Rupees Ten Thousand Only) as D/D drawn in favour of the Board)

Part A

1. Full particulars of the applicant.-

(i)

Name:

(ii)

Permanent address :

(iii)

Name & Address of the authorized person / agent if any, of the applicant:

(iv)

Profile of the organization (Personal profile in case the if applicant is an individual). Please attach relevant documents of authentication:

(v)

Nature of business:

(vi)

Turnover of the organization in Rupees:

(Please enclose a copy of balance sheet)

2. Details and specific information about nature of access sought and biological material and associated knowledge to be accessed.-

(a)

Identification (Scientific name) of biological resources and its traditional use :

(b)

Geographical location (including village, block and district) of proposed collection in Bihar:

(c)

Description/nature of traditional knowledge and its existing manifestations and uses (Oral/documental):

(d)

Any identified individual/community holding the traditional knowledge:

(e)

Quantity of biological resources to be collected (Give the schedule):

(f)

Time span in which the biological resources is proposed to be collected:

(g)

Name and number of person authorized by the company for making the selection:

(h)

The purpose for which the access is requested including the type and extent of research, commercial use being derived and expected to be derived from it:

(i)

Whether any collection of the resource endangers any component of biological diversity and the risks which may arise from the access.

3. Estimation of benefits that would flow to communities arising out of the use of accessed bio-resources and traditional knowledge.

4. Proposed mechanism and arrangements for benefit sharing.

5. Any other information considered relevant.

Part B

Declaration

I/We declare that:

Collection of proposed biological resources shall not adversely affect the sustainability of the resources;

Collection of proposed biological resources shall not entail any environmental impact;

Collection of proposed biological resources shall not pose any risk to ecosystems;

Collection of proposed biological resources shall not adversely affect the local communities;

I/We further declare that the information provided in the application form is true and correct and I/We shall be responsible for any incorrect/wrong information.

Place:

Signed

Date:

Name.....Title/Designation

.....

Form II

{See rule 21 (i)}

Bihar State Biodiversity Board

Annual report for the financial year 20.....

1. Introduction
2. Constitution of the Board
3. Constitution of the Committees by the Board and meetings of the committees constituted by it
4. Meetings of the Board
5. Activities of the Board including the various functions performed under Section 23 of the Act
6. Prosecutions launched and convictions secured
7. Finance and Accounts of the Board
8. Visits of experts, important persons etc to the Board
9. Any other important matter dealt with by the Board

Form III

{See rule 24 (iv)}

Gram Panchayat/ Panchayat Samiti/ Zilla Parshad/ Municipality/Corporation Biodiversity Management Committee

Annual report for the financial year 20.....

1. Introduction
2. Constitution of the BMC
3. Meetings of the BMC
4. Activities of the BMC including the various functions performed under Section 41 of the Act
5. Prosecutions launched and convictions secured
6. Finance and Accounts of the BMC
7. Visits of experts, important persons etc to the BMC
8. Any other important matter dealt with by the BMC

Form IV

[See rule 25(i)]

Form of Memorandum of Appeal

Before the Chairman, Bihar State Biodiversity Board

Appeal No. of 20.....

.....Appellant (s)

vs

.....Respondent(s)

The appellant begs to prefer this Memorandum of Appeal against the order dated passed by the respondent on the following facts and grounds:

1. Facts :

(Here briefly mention the facts of the case):

2. Grounds

(Here mention the grounds on which the appeal is made):

(i)

(ii)

(iii)

3. Relief sought:

(i)

(ii)

(iii)

4. Prayer:

(a)

In the light of what is stated above, the appellant respectfully prays that the order/decision of the respondent be

quashed/set-aside.

(b)

The policy / guidelines / regulation framed by the respondent be quashed /modified / annulled to the extent

(c)

Place:

Date :

Signature of the Appellant with SealAddress:

Verification

Enclosures:

1. Authenticated copy of the order / direction / policy decision, against which the appeal has been preferred.

I, the appellant do hereby declare that what is stated above is true to the best of my information and belief.

Verified on day of

.....Signature of the Appellant with Seal Address:.....Signature of the Authorized representative of the Appellant :

Form V

[See rule 25 (ii)]

Form of Memorandum of Appeal

Before the Secretary, Department of Environment and Forests, Government of Bihar (Memorandum of Appeal)

Appeal No. of 20..... Appellant (s)

vs

.....Respondent(s)

The appellant begs to prefer this Memorandum of Appeal against the order dated passed by the respondent on the following facts and grounds:

1. Facts :

(Here briefly mention the facts of the case):

2. Grounds

(Here mention the grounds on which the appeal is made):

(i)

(ii)

(iii)

3. Relief sought:

(i)

(ii)

(iii)

4. Prayer:

(a)

In the light of what is stated above, the appellant respectfully prays that the order/decision of the respondent be quashed/set-aside.

(b)

The policy / guidelines / regulation framed by the respondent be quashed /modified / annulled to the extent

(c)

Place:

Date :

Signature of the Appellant with SealAddress:

Verification

Enclosures:

1. Authenticated copy of the order / direction / policy decision, against which the appeal has been preferred.

I, the appellant do hereby declare that what is stated above is true to the best of my information and belief.

Verified on day of

.....Signature of the Appellant with Seal Address:.....Signature of
the Authorized representative of the Appellant :

Form VI

Form of Notice

[See rule 25 (v)]

(By Registered Post with Acknowledgement)

Before the Chairman, Bihar State Biodiversity Board,

Appeal No. of 20.....

Between:

.....Appellant(s)

Versus

.....Respondent(s)

Notice

Please take notice that the above appeal filed by the appellant, against the order/direction/policy decision (give details) is fixed for hearing on at

The copies of the appeal memorandum and other annexure filed along with the appeal are sent herewith for your reference.

Please note that if you fail to appear on the said date of other subsequent date of hearing of the appeal, the appeal would be disposed of finally by placing you ex parte.

.....

Place:.....Date :

Authorised signatory on behalf of the

Appellant Authority(Seal)

Form VII

Form of Notice

[See rule 25(v)]

(By Registered Post with Acknowledgement)

Before the Secretary/Principal Secretary Department of Environment & Forests, Government of Bihar

Appeal No. of 20.....

Between:

.....Appellant(s)

Versus

.....Respondent(s)

Notice

Please take notice that the above appeal filed by the appellant, against the order/direction/policy decision (give details) is fixed for hearing on at

The copies of the appeal memorandum and other annexure filed alongwith the appeal are sent herewith for your reference.

Please note that if you fail to appear on the said date of other subsequent date of hearing of the appeal, the appeal would be disposed of finally by placing you ex parte.

.....

Place:.....Date :

Authorised signatory on behalf of the Appellant AuthoritySeal

Related AI tags, queries and research notes

Translation